

SENATE BILL 2090

By Crowe

AN ACT to amend Tennessee Code Annotated, Title 49, Chapter 10, Part 14; Title 49, Chapter 6, Part 26 and Title 49, Chapter 6, Part 35, relative to education.

WHEREAS, a civic education that promotes good citizenship and an understanding of our country's founding principles is essential to preparing future generations to be informed and engaged members of our communities; and

WHEREAS, this State has an interest in ensuring public funds are not spent in support of an education that threatens the basic freedoms upon which this country was founded or that supports or advocates for the overthrow of our American form of government; now, therefore,
BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-10-1404, is amended by designating subsection (c) as subsection (d) and adding the following as a new subsection (c):

(c) To ensure that participating schools receiving public funds through an IEA are providing students a civic education that does not threaten our American freedoms or American form of government, all participating schools shall:

(1) Designate a time each school day for students to have the privilege to stand and recite the Pledge of Allegiance in a manner similar to that required of public schools in § 49-6-1001(c)(1), which must be conducted in accordance with all applicable constitutional rights and restrictions regarding the recitation of the Pledge of Allegiance in school;

(2) Provide students with age- and grade-appropriate instruction in civics and American history; provided, that this subdivision (c)(2) does not require a

participating school to alter its curriculum if the participating school provides students instruction in social studies that includes civics and American history;

(3) Not include or promote, or allow its teachers or other employees to use instructional materials that include or promote, any of the concepts listed in § 49-6-1019(a) as part of any course, curriculum, or instructional program;

(4) Not promote or advocate for the support, adoption, or implementation of any foreign law, legal code, or system, as defined in § 20-15-101, in this state that, if so adopted or implemented, would violate any of the rights guaranteed to individuals by the Tennessee Constitution or the United States Constitution; and

(5) Provide official recruiting representatives of the military forces of this state and the United States, including, but not limited to, representatives of the reserve officers' training corps, access to the campus of the participating school during the school day while students are present to inform students of the educational and career opportunities available in the military.

SECTION 2. Tennessee Code Annotated, Section 49-10-1406(d), is amended by deleting "Neither" and substituting instead "Except as required in § 49-10-1404(c), neither".

SECTION 3. Tennessee Code Annotated, Section 49-6-2607, is amended by designating subsection (f) as subsection (g) and adding the following as a new subsection (f):

(f) To ensure that participating schools receiving public funds through an ESA are providing students a civic education that does not threaten our American freedoms or American form of government, all participating schools shall:

(1) Designate a time each school day for students to have the privilege to stand and recite the Pledge of Allegiance in a manner similar to that required of public schools in § 49-6-1001(c)(1), which must be conducted in accordance with

all applicable constitutional rights and restrictions regarding the recitation of the Pledge of Allegiance in school;

(2) Provide students with age- and grade-appropriate instruction in civics and American history; provided, that this subdivision (f)(2) does not require a participating school to alter its curriculum if the participating school provides students instruction in social studies that includes civics and American history;

(3) Not include or promote, or allow its teachers or other employees to use instructional materials that include or promote, any of the concepts listed in § 49-6-1019(a) as part of any course, curriculum, or instructional program;

(4) Not promote or advocate for the support, adoption, or implementation of any foreign law, legal code, or system, as defined in § 20-15-101, in this state that, if so adopted or implemented, would violate any of the rights guaranteed to individuals by the Tennessee Constitution or the United States Constitution; and

(5) Provide official recruiting representatives of the military forces of this state and the United States, including, but not limited to, representatives of the reserve officers' training corps, access to the campus of the participating school during the school day while students are present to inform students of the educational and career opportunities available in the military.

SECTION 4. Tennessee Code Annotated, Title 49, Chapter 6, Part 35, is amended by designating § 49-6-3512 as § 49-6-3513 and adding the following as a new § 49-6-3512:

49-6-3512.

To ensure that private schools receiving public funds through a scholarship are providing students a civic education that does not threaten our American freedoms or American form of government, an eligible student shall not receive a scholarship pursuant to this part if the student is enrolled in private school that:

(1) Does not designate a time each school day for students to have the privilege to stand and recite the Pledge of Allegiance in a manner similar to that required of public schools in § 49-6-1001(c)(1), which must be conducted in accordance with all applicable constitutional rights and restrictions regarding the recitation of the Pledge of Allegiance in school;

(2) Does not provide students with age- and grade-appropriate instruction in civics and American history; provided, that this subdivision (2) does not require a private school to alter its curriculum if the private school provides students instruction in social studies that includes civics and American history;

(3) Includes or promotes, or allows its teachers or other employees to use instructional materials that include or promote, any of the concepts listed in § 49-6-1019(a) as part of any course, curriculum, or instructional program;

(4) Promotes or advocates for the support, adoption, or implementation of any foreign law, legal code, or system, as defined in § 20-15-101, in this state that, if so adopted or implemented, would violate any of the rights guaranteed to individuals by the Tennessee Constitution or the United States Constitution; or

(5) Does not provide official recruiting representatives of the military forces of this state and the United States, including, but not limited to, representatives of the reserve officers' training corps, access to the campus of the private school during the school day while students are present to inform students of the educational and career opportunities available in the military.

SECTION 5. Tennessee Code Annotated, Section 49-6-3508(c), is amended by deleting "A private" and substituting instead "Except as required in § 49-6-3512, a private".

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 school year and each school year thereafter.